

Tentative Rulings for July 2, 2026 Department PS1

**To request oral argument, you must notify Judicial Secretary
Carol Delfosse-Kidd at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT TELEPHONICALLY WHEN REQUESTING ORAL ARGUMENTS.

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 520 9376**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2302061	FENSON VS AMERICAN HONDA MOTOR COMPANY, INC.	HEARING ON PETITION RE: ARBITRATION AWARD

Tentative Ruling: No opposition filed.

Petition to Confirm Arbitration Award GRANTED.

Petitioner/Defendant to submit a proposed order within 10 days.

OSC re status of case set for 8.04.26.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2504791	GARCIA VS TOP STONEWORKS INC.	MOTION TO COMPEL PLAINTIFF'S FURTHER RESPONSES TO DEFENDANT'S SPECIAL INTERROGATORIES, SET ONE AND REQUEST FOR SANCTIONS AGAINST PLAINTIFF AND PLAINTIFF'S COUNSEL IN THE AMOUNT OF \$1827.50 BY 42ND PALM DESERT LLC

Tentative Ruling: Under CCP § 2031.310(a), a propounding party may move for an order compelling further responses to RFPs where “(1) a statement of compliance with the demand is incomplete; (2) a representation of inability to comply is inadequate, incomplete, or evasive; or (3) an objection in the response is without merit or too general,” and the motion must be accompanied by a meet-and-confer declaration under section 2016.040. The same standard applies to motions to compel further responses to FROGs and SROGs under CCP § 2030.300(a), and likewise requires a reasonable and good faith attempt at informal resolution under section 2016.040. The court “shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response . . . unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (CCP §§ 2030.300(d), 2031.310(h).)

The motions are largely moot as Plaintiff served substantive verified supplemental responses to all three sets of discovery before the hearing. Any remaining dispute as to the sufficiency of those supplemental responses is not before the Court on these motions, which were directed at the original objection-only responses.

Monetary sanctions, however, are warranted. Plaintiff served objection-only responses on March 25, 2026, and did not serve substantive responses until after the motions were filed, with verifications not served until May 15, 2026. Moreover, Plaintiff’s counsel failed to respond to Defendant’s counsel’s meet-and-confer communications between March 26, 2026 and April 17, 2026. While Plaintiff attributes the delay to an “internal administrative error,” he offers no explanation for counsel’s failure to respond to the multiple meet-and-confer attempts, and has demonstrated no substantial justification or other circumstances that would make the imposition of sanctions unjust.

Motion to Compel Further Responses to Defendant's Special Interrogatories, Set One, is MOOT.

Request for Sanctions GRANTED. Plaintiff to pay \$600 + 60 (filing fees) for a total of \$660, within 30 days to Counsel for Defendants.

Trial Setting Conference is continued to 12.03.26. Parties are ordered to submit a JOINT Trial Setting Conference declaration, addressing the items previously ordered on 1.20.26. The joint declaration shall be on pleading paper, do not use form CM-110 that is for Case Management statements.

Order to Show Cause re TSC declaration is continued to 12.03.26. Failure to submit a timely joint TSC declaration will result in sanctions.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2504791	GARCIA VS TOP STONEWORKS INC.	MOTION TO COMPEL PLAINTIFF'S FURTHER RESPONSES TO DEFENDANT'S REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE AND REQUEST FOR SANCTIONS AGAINST PLAINTIFF AND PLAINTIFF'S COUNSEL IN THE AMOUNT OF \$1827.50 BY 42ND PALM DESERT LLC

Tentative Ruling:

Motion to Compel Further Responses to Defendant's Request for Production of Documents, Set One, is MOOT.

Request for Sanctions GRANTED. Plaintiff to pay \$600 + 60 (filing fees) for a total of \$660, within 30 days to Counsel for Defendants.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2504791	GARCIA VS TOP STONEWORKS INC.	MOTION TO COMPEL PLAINTIFF'S FURTHER RESPONSES TO DEFENDANT'S FORM INTERROGATORIES, SET ONE AND REQUEST FOR SANCTIONS AGAINST PLAINTIFF AND PLAINTIFF'S COUNSEL IN THE AMOUNT OF \$1827.50 BY 42ND PALM DESERT LLC

Tentative Ruling:

Motion to Compel Further Responses to Defendant's Form Interrogatories, Set One, is MOOT.

Request for Sanctions GRANTED. Plaintiff to pay \$600 + 60 (filing fees) for a total of \$660, within 30 days to Counsel for Defendants.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2505340	LEE VS OMNI RANCHO LAS PALMAS, LLC	MOTION TO STRIKE DEMURRER ON 2ND AMENDED COMPLAINT OF CASSANDRA J LEE

Tentative Ruling: A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (Civ. Proc. Code, § 430.10(e).) A demurrer tests the legal sufficiency of the pleading, but not the truthfulness of the allegations. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Id.*)

The elements of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation. (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 903.) Conduct must be "so extreme as to exceed all bounds of that usually tolerated in a civilized society." (*Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc.* (2005) 129 Cal.App.4th 1228, 1259.) "Only emotional distress of 'such substantial quantity or enduring quality' that an individual in civilized society should not be expected to endure it constitutes severe emotional distress." (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) Facts regarding the nature, extent or duration of the alleged emotional distress should be pled in the complaint to support severe emotional distress. (*Ibid.*) "[W]hether conduct is outrageous is 'usually a question of fact' ... [However] many cases have dismissed intentional infliction of emotional distress cases on demurrer, concluding that the facts alleged do not amount to outrageous conduct as a matter of law." (*Bock v. Hansen* (2014) 225 Cal.App.4th 215, 235.)

3rd Cause of Action IIED:

Plaintiff's second amended complaint adds language identifying specific employees that are alleged to have ratified the conduct. (SAC ¶ 47.) Plaintiffs have alleged extreme and outrageous conduct, that Defendants had actual and constructive notice of the hotel rooms, including the subject room 2316, as numerous guests have complained about bed bugs. (SAC ¶¶36, 129.) Plaintiffs suffered hundreds of bed bug bites over their bodies which demonstrated a long-standing infestation. (SAC ¶40.) Plaintiffs contend the infestation occurred prior to their stay and has been a recurring problem as demonstrated through online reviews and prior lawsuits. (SAC ¶¶126-127.) Defendant argues that the prior *Mantzian* lawsuit involved an infestation prior to 2024. (SAC ¶127.) However, the additional facts added to the second amended complaint fail to show again, that Defendants knew that room 2316 was infested. Nothing to indicate Defendants acted with intent, or reckless disregard in assigning that specific room. Plaintiffs refer to consumer reviews, guest complaints and inspection reports and findings but fail to show how these were related to the room that Plaintiffs occupied. The reference

to the *Mantzian* lawsuit was a claim of infestation from 2021. The SAC does not sufficiently plead facts to support intentional infliction of emotional distress.

5th Cause of Action Fraudulent Concealment:

Concealment requires: “(1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (*Marketing West, Inc. v. Sanyo Fisher (USA) Corp.* (1992) 6 Cal.App.4th 603, 612-613.) As concealment is a species of fraud, it must also be pled with specificity. (*Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 878.) Less specificity is required where the defendant necessarily possesses the information. (*Committee On Children’s Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 216.) Furthermore, as noted by one court, it is not practical to allege facts showing how, when and by what means something did not happen. (*Alfaro v. Community Housing Improvement System Planning Assn.* (2009) 171 Cal.App.4th 1356, 1384.) However, if the concealment is based on providing false or incomplete statements, the pleading must at least set forth the substance of the statements at issue. (*Ibid.*)

Plaintiffs plead Defendants had notice of the bed bugs in the room (SAC ¶153-154) and Defendants failed to disclose the bed bug infestation (SAC ¶152). Again, as with intentional interference with emotional distress, Plaintiffs allegations of knowledge are insufficient. As with the allegations for intentional inflection of emotional distress, the cause of action for fraudulent concealment refers to complaints, inspection findings, pest control history and the *Mantzian* lawsuit. No facts were submitted showing that any of these forms of notice to Defendants related to Room 2316, nearby rooms, or even that particular building in which 2316 is located. No facts are alleged to show that Defendants intentionally concealed or suppressed that room 2316 was infested with bed bugs, with the intent to defraud.

Demurrer as to the 3rd and 5th Causes of Action for the Second Amended Complaint SUSTAINED without leave to amend.

*Defendant’s Motion labelled the IIED claim as the 4th Cause of Action and the Fraudulent Concealment claim as the 6th Cause of Action in their opposition.

Case Management Conference continued to 12.17.26. The parties are ordered to file with the Court ten days in advance of the continued CMC a joint declaration of counsel. The updated Case Management Statement shall be submitted on pleading paper with a brief summary of the status of the case and any specified issues that need to be addressed by the court. Do not use Judicial Counsel form CM-110.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2505340	LEE VS OMNI RANCHO LAS PALMAS, LLC	DEMURRER ON 2ND AMENDED COMPLAINT OF CASSANDRA J LEE

Tentative Ruling:

Motion to Strike MOOT.

In light of the court sustaining the demurrer as to the 5th Cause of Action Fraudulent Inducement, the motion to strike is moot.

7.

CASE #	CASE NAME	HEARING NAME
CVPS2601127	SZYMCAK VS TENNIS VENTURES, LLC	DEMURRER ON COMPLAINT OF LEANNE SZYMCAK

Tentative Ruling: A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (C.C.P., § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly alleged, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.)

A pleading may also be challenged as uncertain where it is “ambiguous and unintelligible.” (C.C.P., § 430.10(f).) Uncertainty demurrers are disfavored and strictly construed, and they lie only where the pleading is so incomprehensible that the defendant cannot determine what issues must be admitted or denied. (*Khoury v. Maly’s of California, Inc.* (1993) 14 Cal.App.4th 612, 616.) “Such a demurrer should not be sustained where the allegations of the complaint are sufficiently clear to apprise the defendant of the issues which he is to meet.” (*People v. Lim* (1941) 18 Cal.2d 872, 882.)

If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

1st Cause of Action Negligence/Negligence per se:

The elements of a negligence cause of action are: duty, breach, proximate or legal cause of injury to Plaintiff resulting from the breach, and damage to plaintiff. (*Ann M. v. Pacific Plaza Shopping Center* (1993) 6 Cal.4th 666, 673.) “Negligence per se” is not an independent tort, but rather an evidentiary doctrine codified at Evidence Code section 669. Under subdivision (a) of this section, the doctrine creates a presumption of negligence if four elements are established: (1) the defendant violated a statute, ordinance, or regulation of a public entity; (2) the violation proximately caused death or injury to person or property; (3) the death or injury resulted from an occurrence the nature of which the statute, ordinance, or regulation was designed to prevent; and (4) the person suffering the death or the injury to his person or property was one of the class of persons for whose protection the statute, ordinance, or regulation was adopted. These latter two

elements are determined by the court as a matter of law.” (*Quiroz v. Seventh Ave. Ctr.* (2006) 140 Cal.App.4th 1256, 1285.)

Plaintiff alleges violation of Vehicle Code section 22350, that she is among the class of persons the statute was designed to protect, and that the statute was enacted to prevent the type of accident alleged. These are sufficient ultimate facts at the pleading stage.

A negligence claim against an entity defendant may proceed on respondeat superior, on direct negligence based on ownership or control of the vehicle, on negligent entrustment, or any combination of those theories. The Complaint pleads each. It alleges Jane Doe was Moving Defendants’ agent or employee, acting within the scope of that relationship, and operating the cart with their express or implied authority and permission. That ultimate fact must be accepted as true at this stage. (*Brown v. USA Taekwondo* (2021) 11 Cal.5th 204, 214.) The Complaint further alleges Defendants owned, leased, maintained, managed, possessed, or otherwise controlled the cart. It also alleges Defendants knew or should have known Jane Doe was unfit, yet allowed her to operate the cart, and that her unfitness was a substantial factor in causing Plaintiff’s injuries. California permits alternative pleading where the precise factual relationship is within Defendants exclusive knowledge, and less particularity is required as to matters more readily known to Defendants. (*Smith v. Beauchamp* (1945) 71 Cal.App.2d 250.)

Moving Defendants’ contention that the Complaint must identify the specific employer, the exact employment arrangement, and the precise ownership chain seeks evidentiary detail rather than ultimate facts. Their argument that the entities owed no duty because they were not the driver overlooks the express vicarious-liability theory; an entity defendant may be liable through respondeat superior even though it did not personally operate the cart. Their contention that Plaintiff still cannot identify the driver is not a section 430.10(e) defect; Code of Civil Procedure section 474 expressly authorizes fictitious-name pleading.

2nd Cause of Action Negligent Entrustment:

The elements of negligent entrustment of a vehicle are as follows: (1) that the driver was negligent in operating the vehicle; (2) that the defendant owner owned the vehicle operated by the driver or had possession of that vehicle with the owner’s permission; (3) that the defendant owner knew, or should have known, the driver was incompetent or unfit to drive the vehicle; (4) that defendant owner permitted the driver to operate the vehicle regardless; and (5) that the driver’s incompetence or unfitness to drive was a substantial factor in causing harm to the plaintiff. (*McKenna v. Beesley* (2021) 67 Cal.App.5th 552, 565-66.)

The ownership, control, and permission allegations are adequate at the pleading stage. The dispositive defect is the knowledge and incompetence pleading. The Complaint alleges only that Defendants knew or should have known Jane Doe was incompetent or unfit, without identifying what made her so or any basis for actual or constructive notice. An owner is under no duty to keep a vehicle from a third person absent facts putting the owner on notice that the third person is incompetent to handle it. Negligent entrustment requires knowledge or reason to know of the driver’s incompetency, inexperience, or recklessness. A bare recitation that defendant knew or should have known of incompetence, without any predicate factual content identifying the basis for actual or constructive notice, does not satisfy the ultimate-facts requirement.

(*Owens v. Colfax* (1986) 184 Cal.App.3d 544, 547–48.) The causation allegation depends on the inadequately pleaded incompetence element and is correspondingly deficient.

3rd Cause of Action Negligent Hiring, Supervision and Retention of Unfit Employees:

Negligent hiring, retention, and supervision is a recognized direct-liability tort in California. (*C.A. v. William S. Hart Union High School District* (2012) 53 Cal.4th 861.) The elements of a cause of action for negligent hiring, retention, or supervision are: (1) the employer's hiring, retaining, or supervising an employee; (2) the employee was incompetent or unfit; (3) the employer had reason to believe undue risk of harm would exist because of the employment; and (4) harm occurs. (*Evan F. v. Hughson United Methodist Church* (1992) 8 Cal.App.4th 828, 836-837.) It requires that the employee was unfit or incompetent for the work assigned, that the employer knew or should have known hiring or retaining the employee created a particular risk or hazard, that the particular harm materialized, and that the employer's negligent hiring, retention, or supervision was a proximate cause of the injury. (*Delfino v. Agilent Technologies, Inc.* (2006) 145 Cal. App. 4th 790.) Prior notice of a specific dangerous propensity, not generalized carelessness, is what makes later harm foreseeable. (*Conti v. Watchtower Bible & Tract Society of New York, Inc.* (2015) 235 Cal. App.4th 1214.)

The Complaint alleges only that Jane Doe was unfit or incompetent to perform the work for which she was hired, that Defendants knew or should have known of her unfitness, and that her unfitness created a particular risk. It does not describe what made her unfit, nor does it allege any pre-hire or post-hire facts from which actual or constructive notice could be inferred. The bare element-tracking allegations are conclusory rather than ultimate facts. Information-and-belief and superior-knowledge principles can reduce required detail where personnel information lies largely with Defendants, but they do not eliminate the requirement of some factual predicate for unfitness and notice. (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531.)

Demurrer as to the 1st Cause of Action OVERRULED.

Demurrer as to the 2nd and 3rd Causes of Action SUSTAINED with leave to amend.

Plaintiff to file an amended complaint within 15 days.

Case Management Conference confirmed for 9.01.26.

8.

CASE #	CASE NAME	HEARING NAME
CVPS2603656	JAMES VS DESERT MOBILE HOMES LLC	HEARING RE: ELIGIBILITY OF WAIVER OF COURT FEES AND COSTS AS TO DAVID JAMES

Tentative Ruling: No tentative ruling. A hearing shall be conducted.